Agreement on Authorship and Rights in the Work "Playground Life"

This Agreement (the "**Agreement**") is made on **____ _____ 20____**, between:

(1) Erion Beka, of **Str. Zekeria Cana, House No. 4, Laxha e Profesoreve, Prishtina, Republic of Kosovo** (the "**Author**"); and

(2) the natural persons whose names appear in the signature blocks at the end of this document (the "**Confirming Parties**").

The Author and the Confirming Parties are referred to together as the "**Parties**" and each as a "**Party**".

RECITALS

Whereas:

(A) the Author has created by himself, independently and originally, the software work and its component elements known as **"Playground Life"** (the "**Work**"), having invested in it his time, skill and creative effort;

(B) the initial idea was presented at the **pristina.innovate.healthcare** hackathon (04-06 April 2025, Prishtina), organised by **HealthCare Futurists GmbH**;

(C) at that event only slides and a few illustrative images were presented, with no application, source code or working version of the Work being submitted;

(D) development of the Work in its current form began after that event, around April 2026, and the Work therefore does not constitute a submission to the hackathon;

(E) under the law in force in the Republic of Kosovo, copyright arises automatically upon creation of the work and belongs to the natural person who created it (Articles 7 and 15 of the Law);

(F) the Parties wish to confirm and secure, clearly and definitively, the state of the rights in the Work, and to prevent any possible ambiguity or dispute in relation to them;

(G) each Party enters into this Agreement of its own free will, having had the opportunity to obtain independent legal advice;

Article 1 - DEFINITIONS AND INTERPRETATION

1.1 For the purposes of this Agreement, the following terms have the meanings below:

- **(a) "Law"**: **Law No. 08/L-205 on Copyright and Related Rights** (Official Gazette of the Republic of Kosovo No. 22/2023, 12 October 2023; in force 27 October 2023), which repealed Law No. 04/L-065, Law No. 05/L-047 and Law No. 06/L-120.
- **(b) "Obligations Law"** - **Law No. 04/L-077 on Obligational Relationships** (Official Gazette No. 16/2012, 19 June 2012).
- **(c) "Work"** - the software work known as "Playground Life" and all of its component elements, in any form or medium, including: source and object code and software components; architecture, models, diagrams and technical documentation; databases, schema and configurations; user interfaces (UI/UX), graphic design, icons, logos and visual style; texts, labels, content and manuals; images, sounds, animations and digital assets; algorithms, business logic and embodied know-how; the presentation

materials and images prepared for the hackathon, to the extent they relate to the Work; and any subsequent version, variant, copy or update of them.

- **(d) "Rights"** - copyright, moral rights, the exclusive economic rights under Article 23 of the Law, rights to remuneration, related rights where applicable, and any other intellectual property right in any jurisdiction.
- **(e) "Confidential Information"** - the content of this Agreement and any non-public information relating to the Work.

1.2 The headings of Articles are for convenience only and do not affect interpretation. Terms in the singular include the plural and vice versa. References to laws refer to the laws in force, including any amendment or replacement of them.

Article 2 - SUBJECT MATTER AND PURPOSE

2.1 The subject matter of this Agreement is the clear determination of the state of the rights in the Work between the Parties.

2.2 The purpose of the Parties is to confirm and secure, fully and irrevocably, that the rights in the Work belong to the Author, and to prevent any possible ambiguity or dispute in relation to them.

Article 3 - PRINCIPLES

3.1 The Parties enter into and perform this Agreement in accordance with the principle of good faith and fair dealing (Article 4 of the Obligations Law).

3.2 The Parties shall cooperate in good faith to give full effect to this Agreement.

3.3 In case of ambiguity, the provisions of this Agreement shall be interpreted so as to give the Author the broadest scope of transfer permitted by the Law.

Article 4 - AUTHORSHIP

4.1 The Author is the natural person who created the Work. Within the meaning of Articles 7 and 15 of the Law, the copyright in the Work belongs to him and arises automatically upon creation of the Work, without any need for registration or other formality.

4.2 The Parties confirm that the Work is the product of the sole, independent and personal creative effort of the Author. Under Article 9 of the Law, a work of joint authorship requires a joint creative effort; the Parties agree that no such effort has existed in relation to the Work.

4.3 For the avoidance of doubt, the following do not constitute a joint creative effort, within the meaning of the Law: participation in a group or a hackathon; the exchange of ideas, suggestions or comments; attendance at meetings and communications; the presentation of materials prepared by the Author; the testing or use of the Work; and logistical, administrative, financial or organisational activities.

4.4 Each Confirming Party confirms that it has not been engaged by the Author and has not entered into any employment, commission or contractual relationship with him in relation to the Work.

Article 5 - TRANSFER OF RIGHTS

5.1 For the avoidance of any doubt, each Confirming Party, if and to the extent that it holds or may be deemed to hold any right in the Work, **assigns to the Author** by this Agreement, fully, irrevocably and unconditionally, all of its right, title and interest in the Work, with effect from the creation of the Work.

5.2 The assignment covers all economic rights under Article 23 of the Law, the rights to remuneration, and any claim, demand or remedy, present or future, in relation to the Work. Consequently, the Author is the sole owner of the assigned rights (Article 37 of the Law); this is a transfer of ownership and not a licence.

5.3 Within the meaning of Article 38 of the Law, the assignment is specified as follows:

- **(a) nature and scope of exploitation**: all forms of exploitation known as at the date of this Agreement, as well as the right to authorise or prohibit exploitation by third parties;
- **(b) duration**: the entire term of protection under the Law (the life of the author plus 70 years, Article 65 of the Law), and in any event the longest term permitted;
- **(c) territory**: the entire territory of the world;
- **(d) remuneration**: as set out in Article 10;
- **(e) terms and time of payment**: not applicable.

5.4 The Parties have intentionally designated the broadest scope permitted and agree that any ambiguity shall be construed in favour of the Author, in accordance with Article 38 of the Law.

5.5 The assignment is limited to the existing Work identified in this document. It does not cover future works not yet created (Article 39 of the Law) or uses wholly unknown at the date of the Agreement; any method of exploitation known at that date, and any method deriving from it, is included in the assignment.

5.6 If and to the extent that a Confirming Party is deemed a co-author, it waives the exploitation of its share and, by this declaration, its share passes to the Author as the other author (Article 9(4) of the Law).

Article 6 - WAIVER AND NON-CHALLENGE

6.1 Each Confirming Party irrevocably waives any claim or demand it has or might have against the Author in relation to the Work, including claims of authorship, co-authorship, ownership, remuneration or compensation.

6.2 Each Confirming Party undertakes not to bring proceedings, not to assist others in bringing proceedings, and not to challenge the Author's claims of ownership of the Work.

Article 7 - MORAL RIGHTS

7.1 The Parties acknowledge that, under Article 22(1) of the Law, moral rights cannot be transferred or licensed, and this Agreement does not purport to transfer them.

7.2 To the extent that a Confirming Party holds or claims any moral right in the Work, it waives, to the fullest extent permitted by the Law, any such claim and gives its consent, for the purposes of Article 22(2) of the Law, that the Author may use, reproduce, modify, distribute and exploit the Work. The Parties note that the right of regret (Article 21) is protected only during the author's life and does not apply to computer programs.

7.3 The Author's moral rights - the right of first publication (Article 18), the right of paternity (Article 19) and the right of integrity (Article 20) - remain his and are protected without limitation in time (Article 64 of the Law).

Article 8 - WARRANTIES

8.1 Each Confirming Party warrants that: (a) the facts it confirms in this Agreement are true to the best of its knowledge; (b) if it contributes anything, that contribution is its original work or it holds all rights necessary to assign it; (c) it has not previously assigned, licensed or encumbered any right purported to be assigned here; (d) it has disclosed in writing any third-party or AI-generated material related to the Work; (e) it has full capacity

and authority to enter into this Agreement; and (f) it is not under any employment, commission or other obligation that would prevent it or that would pass rights in the Work to a third party.

8.2 The warranties in this Article survive signing.

Article 9 - CONFIDENTIALITY

9.1 Each Party shall keep the Confidential Information confidential and shall not disclose it to third parties without the Author's prior written consent.

9.2 Disclosure or uploading of the Confidential Information to an external, third-party service for artificial intelligence, cloud computing or data processing, not under the exclusive control of the disclosing Party itself, constitutes disclosure to a third party within the meaning of clause 9.1 and requires the Author's prior written consent.

9.3 Clause 9.2 does not restrict disclosure: (a) to the Party's own legal, tax or professional advisers, who are under a duty of confidentiality; (b) where required by law, by a court or a competent authority; or (c) of information that becomes public without breach of this Agreement. Nothing in this Article limits the Parties' rights over their own personal data under Law No. 06/L-082 on the Protection of Personal Data.

9.4 A breach of this Article shall not affect the validity or continuing effect of the confirmations, assignment, waiver or obligations in this Agreement. The remedy for such a breach is compensation for proven damage, and not the loss of any right under this Agreement.

9.5 The Parties shall not publicly disparage one another in relation to the Work; this does not restrict the right to state the truth in legal proceedings.

Article 10 - REMUNERATION

10.1 As consideration for the confirmations, assignment, waiver and obligations in this Agreement, the Author gives each Confirming Party the acknowledgement recorded in its signature, if any, together with a symbolic sum of one (1) euro, receipt of which each Confirming Party acknowledges.

10.2 The Parties note that the Work is a computer program; under Article 44(2) of the Law, Articles 40(4), 41, 42 and 43 do not apply to computer programs. The remuneration set in clause 10.1 is therefore final.

Article 11 - INDEMNITY

11.1 Each Confirming Party shall indemnify and hold harmless the Author against any loss, damage, cost or third-party claim arising from a breach of the warranties in Article 8 or from any claim by that Party to rights in the Work contrary to this Agreement.

11.2 This obligation survives termination or expiry of this Agreement.

Article 12 - FURTHER ASSURANCES

12.1 Each Confirming Party shall, at the Author's request and expense, promptly sign any further document and take any reasonable step necessary to give full effect to this Agreement and to evidence, register or notarise the assignment of any right.

Article 13 - FREE CONSENT AND INDEPENDENT ADVICE

13.1 Each Party confirms that it has read and understood this Agreement and signs it freely and of its own free will.

13.2 Each Confirming Party confirms that it has had a reasonable opportunity to obtain independent legal advice before signing.

13.3 Each Party accepts that it has not relied on any statement or promise outside this Agreement and that this Agreement is entered into without threat (Article 45 of the Obligations Law), essential error (Article 46), fraud (Article 49) or undue influence.

Article 14 - RELATIONSHIP OF THE PARTIES

Nothing in this Agreement creates any partnership, joint venture, agency, employment or fiduciary relationship between the Parties.

Article 15 - GOVERNING LAW AND JURISDICTION

15.1 This Agreement is governed by the laws of the Republic of Kosovo.

15.2 The Parties submit to the exclusive jurisdiction of the competent courts in Prishtina, Republic of Kosovo.

15.3 Matters not regulated by the Law are governed by the Obligations Law (Article 40(7) of the Law).

Article 16 - GENERAL PROVISIONS

16.1 **Entire agreement.** This Agreement constitutes the entire agreement between the Parties on its subject matter and supersedes any prior understanding.

16.2 **Severability.** If any provision is held invalid or unenforceable, the remainder shall remain in force and the affected provision shall be replaced by a provision as similar in effect as possible, so as to give the Author the fullest protection permitted by the Law.

16.3 **Third parties.** No person other than the Parties and the Author's successors or assignees has the right to enforce this Agreement.

16.4 **Counterparts and electronic signature.** This Agreement may be signed in separate counterparts, each of which is an original. An electronic or scanned signature has the same effect as a handwritten signature.

16.5 **Notices.** Notices are sent to the Parties at the addresses stated in this Agreement or at their last known address. A notice by email is deemed received on the day of sending.

16.6 **Survival.** The provisions on confidentiality, warranties, indemnity, further assurances and governing law survive termination or expiry of this Agreement.

16.7 **Language.** The Albanian version of this Agreement is the controlling language. This English text is provided for reference only.

Article 17 - SIGNATURES AND EVIDENCE

17.1 The Parties may certify or legalise their signatures before a notary under Law No. 06/L-010 on Notary; a notarised deed has strong evidentiary value and is directly enforceable (Article 43 of that law). Notarisation is optional.

17.2 If a Party signs outside Kosovo, its signature may be accompanied by an apostille under the Hague Convention.

SIGNATURES

Each Party signs only its own block and, by signing, confirms that it has read, understood and accepts the contents of this Agreement.

Confirming Party 1

Field	
Full legal name	_____
Address	_____
Signature	_____
Date and place	_____
Notarial certification (optional)	_____

Confirming Party 2

Field	
Full legal name	_____
Address	_____
Signature	_____
Date and place	_____
Notarial certification (optional)	_____

Confirming Party 3

Field	
Full legal name	_____
Address	_____
Signature	_____
Date and place	_____
Notarial certification (optional)	_____

Confirming Party 4

Field	
Full legal name	_____
Address	_____
Signature	_____
Date and place	_____
Notarial certification (optional)	_____

Author

Field	
Full legal name	Erion Beka
Address	Str. Zekeria Cana, House No. 4, Laxha e Profesoreve, Prishtina, Republic of Kosovo
Signature	_____
Date and place	_____
Notarial certification (optional)	_____